

Smt. Nisha v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 November 2024 · 2024:AHC:181567-DB · Writ - C No. 36116 of 2024 · **Writ disposed with liberty to avail the clause 6.5 remedy.**

HEADNOTE

A writ to restrain proceedings and coercive action on a recovery letter, where the consumer disputes the correctness of the amount demanded, is disposed of with liberty to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005, that clause being an effective alternative remedy which the petitioner did not dispute.

FACTUAL SUMMARY

Smt. Nisha approached the Allahabad High Court against the State of Uttar Pradesh, Dakshinanchal Vidyut Vitaran Nigam Limited, Torrent Power Limited, Agra, and the Executive Engineer, Gramin Sikandara, District Agra. A recovery letter issued by respondent No. 3 demanded a sum from her. She asked the Court to restrain the authorities from starting any proceeding on that letter and from taking any coercive step in respect of it. The dispute was over whether the amount demanded was correct.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disputed recovery amount — clause 6.5 as alternative remedy

HOLDING

Where the consumer disputes the correctness of the amount demanded under a recovery letter, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an effective alternative remedy. The writ seeking to restrain proceedings and coercive action on that letter was disposed of with liberty to avail the remedy, the petitioner having not disputed its availability. ¶ 3-6

PRINCIPLE TAGS

clause-6.5-alternate-remedy Counsel for the licensees identified Clause 6.5 as the remedy for a dispute over the correctness of the amount in the recovery letter, and the petitioner did not contest that route. ¶ 4-6

article-226-alternate-remedy-up-supply-code-6.5 The Division Bench disposed of the writ with liberty to invoke Clause 6.5, without examining the demand or restraining recovery. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMOUNT DEMANDED BY THE RECOVERY LETTER, AND ANY CONSEQUENTIAL RECOVERY

The writ was disposed with liberty to raise the dispute under Clause 6.5; the demand was not examined. ¶ 3-6